

Ajit Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 23 June 2023 · 2023:AHC:128234-DB · WRIT - C No. 20711 of 2023 · **Disposed; clause 4.4 application to be considered in accordance with law.**

HEADNOTE

Writ against refusal of a new connection, denied because the owner-mother objected despite the applicant's one-eighth share, disposed of on consent without any opinion on the merits. The petitioner was left to move an application under clause 4.4 of the Electricity Supply Code, 2005; if moved, the department is to examine and decide it strictly in accordance with law, preferably within six weeks of production of a certified copy.

FACTUAL SUMMARY

Ajit Singh, claiming a one-eighth share in a property owned by his mother, sought a new electricity connection. By an order dated 20 March 2023 the electricity department refused the connection on the ground that his mother, the owner, had objected. He approached the Allahabad High Court to quash that refusal, invoking clause 4.4 of the Electricity Supply Code, 2005. At the hearing, counsel for the department stated that an application moved under that clause would be considered and decided expeditiously in accordance with law.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

consideration of a clause 4.4 application after the owner's objection

HOLDING

Where a new connection is refused on the owner's objection and the applicant invokes clause 4.4 of the Electricity Supply Code, 2005, the writ may be disposed of on consent and without any opinion on the merits, leaving the applicant to move an application under that clause. If such an application is preferred, the Court hopes and trusts that the licensee will examine and decide it strictly in accordance with law, expeditiously and preferably within six weeks from production of a certified copy of the order. ¶ 3-5

PRINCIPLE TAGS

direction-to-consider-connection-on-furnishing-4.4-or-annexure-4.2-documents On consent, and without deciding whether a one-eighth co-sharer is entitled to a connection despite the owner's objection, the Court left the petitioner to apply under clause 4.4 and recorded that any such application be examined and decided strictly in accordance with law, preferably within six weeks. ¶ 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A CO-SHARER HOLDING A ONE-EIGHTH INTEREST IS ENTITLED TO A NEW ELECTRICITY CONNECTION UNDER CLAUSE 4.4 DESPITE AN OBJECTION BY THE OWNER.

The Court expressly declined to express any opinion on the merits and did not quash the refusal dated 20 March 2023. ¶ 5